

~~DECLARATION~~ OF NAVDEEP PANDEY — EVIDENCE-BACKED

CONFIDENTIAL

Declaration of Navdeep Pandey

TA Digital Ascent — specialized knowledge, experience and contributions, corroborated throughout by prior company records. Made pursuant to 28 U.S.C. § 1746.

DECLARANT

Navdeep Pandey

ORGANIZATION

TechAspect Solutions, LLC

EXECUTED

[CONFIRM — execution date]

Note on the supporting records reproduced in this declaration

Passages set in the ruled panels below are **verbatim quotations** from a single compiled historical source — save for NP-01, which sets out field entries as recorded on a form rather than running prose: *Pandey, Navdeep (TA) L-1B BKT Initial (10-2023)-1.pdf*, the 2023 blanket L-1B application packet. Every panel cites the actual PDF page of that file. The principal document quoted is the petitioner's letter of support dated 28 September 2023 — a **prior formal TA Digital company representation** about my role and knowledge. It is not an independent third-party record, and I do not characterise it as one. Its value is that the company described my responsibilities and authority in 2023 in terms consistent with what I state here. Emphasis in the panels is mine and is added only for the reader's orientation; no quoted wording has been altered.

01 Declarant Identity and Basis of Personal Knowledge

1. My name is Navdeep Pandey. I am a national of India, currently residing in Dallas, Texas, and employed in the United States by TechAspect Solutions, LLC, which operates under the Credera brand and which I refer to in this declaration as “the U.S. organization.”

2. I joined TechAspect Solutions Private Ltd., operating as TA Digital, in India on 22 March 2022 as a Data Architect, and worked directly with the proprietary TA Digital platform known as TA Digital Ascent (“Ascent”) from that date until my intracompany transfer to the United States.
3. I am competent to make this declaration because the matters described arise from work I personally performed or in which I directly participated. Where I describe my own work, technical decisions or responsibilities, I do so from firsthand knowledge. Where a proposition is corroborated by a company record, I reproduce the record. Where a record that once existed is no longer retained, I say so rather than supplying an estimate.
4. My current title within the U.S. organization is **[CONFIRM – current title as counsel wishes it stated]**. My employment has been continuous with the same corporate group since 22 March 2022.

SUPPORTING RECORD NP-01 · PRIOR COMPANY FILING STATEMENT

Part 5. Information About Foreign Employment — Qualifying Foreign Position:
Specialized Knowledge Professional. Foreign Employer Name: TechAspect
Solutions Private Ltd. ... Job 1 — Job Title: Data Architect; Start Date:
03/22/2022; End Date: Present.

What this record establishes. The foreign employing entity, my foreign job title, and the 22 March 2022 start date relied on throughout this declaration, as stated by the petitioner on the form itself.

Source. *Pandey, Navdeep (TA) L-1B BKT Initial (10-2023)-1.pdf*, PDF p. 32 (Form I-129S, page 4 of 8, Part 5).

5. I record one limitation of that packet candidly. The compiled copy available to me contains insert markers reading “PLEASE INSERT ONE COPY OF EMPLOYMENT VERIFICATION LETTER (EVL) HERE” and “Please insert 14 months of paylips” at PDF pp. 45–46 rather than the letters and pay statements themselves. Those documents exist and were filed, but I do not reproduce them here because they are not present in the copy I have quoted from.

02 Professional Foundation Before TA Digital, and What Was New

6. I did not join TA Digital as a newcomer to Adobe technologies or to digital analytics. I was employed by HCL Technologies Ltd. (BPO Services), Noida, from 17 August 2012 to 15 February 2014 as a Junior Engineer, Product Support; by Adobe Systems India Private Limited, Noida, from 10 March 2014 to 3 April 2020, most recently as Senior Technical Support Consultant, working with Adobe Analytics, Adobe Launch and its predecessor Dynamic Tag Management, tagging and data-collection implementation, data-layer design, and analytics diagnostics; and by Visa Consolidated Support Services (India) Private Limited, Bangalore, from 6 April 2020 to 21 March 2022 as Senior Software Engineer, Digital Analytics, working with enterprise analytics implementation, tag management including Tealium, audience and segmentation work and measurement architecture.

SUPPORTING RECORD NP-02 · PRIOR TA DIGITAL COMPANY STATEMENT

“... the Beneficiary was employed by Adobe as a Senior Technical Support Consultant from March 10, 2014 to April 3, 2020 and was employed by Visa Sr. SW Engineer from April 6, 2020 to March 21, 2022.”

What this record establishes. My pre-TA Digital technical foundation, as the company itself described it in 2023 — consistent with the dates I state above.

Source. Same file, PDF p. 42 (letter of support, “The Beneficiary’s Qualifications”).

7. That experience meant that when I joined TA Digital I already understood how the individual Adobe technologies behaved as products. What I did not have, and had to acquire after 22 March 2022, was knowledge specific to TA Digital and to Ascent:
 - the architecture of Ascent as a single integrated solution, and how its three principal components related to one another;
 - TA Digital’s own implementation patterns and the proprietary integration conventions built into the platform, and the reasons particular architectural decisions had been made;

- the customization model — what could be varied for a client engagement and what had to remain stable in the reusable core;
 - the Ascent codebase, configuration structure and rebuild processes;
 - the data-flow dependencies across the platform, and how a change in one layer propagated to others;
 - the technical review, validation and deployment procedures applied within Ascent work;
 - the failure modes particular to Ascent, as distinct from those of any individual Adobe product.
8. My prior industry experience provided the foundation that enabled me to learn Ascent at an advanced level. It did not substitute for the company-specific knowledge I subsequently developed. The company made the same distinction in its own words: that my Ascent expertise “does not exist outside TA Digital, since the program is proprietary” (NP-05 below).

03 TA Digital Ascent and the Technical Environment

9. The facts in this section rest on company records, which I reproduce, rather than on my recollection.

SUPPORTING RECORD NP-03 · PRIOR TA DIGITAL COMPANY STATEMENT — WHAT ASCENT IS

“TA Digital Ascent: is both a proprietary product of TA Digital and a proprietary tool used by TA Digital’s employees . It is an eCommerce Web Application based on industry-leading practices. TA Digital Ascent works to integrate many key Adobe Marketing Cloud Applications including Adobe Analytics, Adobe Sensei, Adobe Experience Platform (AEP), Adobe Experience Manager (AEM), Customer Journey Analysis (CJA), Adobe Commerce, Marketo with Adobe Analytics, Adobe Journey Optimizer (AJO), Adobe Launch/Data Collection, and Adobe Target. TA Digital Ascent is a software package pre-made by TA Digital to provide standard client eCommerce services. ... It is the company’s key competitive advantage in providing Adobe-related eCommerce consulting services because it allows the company to jumpstart client projects with readymade software while simultaneously allowing the creation of highly customizable software for the specific business needs required by end clients. Among the components of TA Digital Ascent are an eCommerce AEM web application, an eCommerce Connector, and a digital marketing connector.”

What this record establishes. That Ascent was proprietary to TA Digital, that it integrated the named Adobe technologies as one solution, that it was commercially central to the firm, and that it comprised the three components I describe working across in Part 6.

Source. Same file, PDF pp. 39–40 (letter of support, “Specialized Knowledge”).

SUPPORTING RECORD NP-04 · PRIOR TA DIGITAL COMPANY STATEMENT — WHY COMPANY-SPECIFIC KNOWLEDGE IS OPERATIONALLY REQUIRED

“TA Digital maintains a regular rotational program for personnel at the managerial and executive Level and those with specialized knowledge of the TA Digital software design, development, productions, and analysis, internal procedures, and productions methods . This ensure that employees, who have special knowledge of the internal procedures and methodologies of TA Digital, are able to provide specialized service to the client.”

What this record establishes. That company-specific internal knowledge — as distinct from general product skill — had a defined operational function in TA Digital’s delivery model.

Source. Same file, PDF p. 37 (letter of support, “The Petitioner”). Quoted as written, including its typographical errors.

10. Ascent was not solely an internally described asset. A solution built on Ascent was awarded Adobe Accredited Partner Solution status, under a programme in which accredited solutions are market-tested and technically verified by Adobe. TA Digital's Chief Technology Officer stated publicly that Ascent had been serving joint clients with Adobe for several years before I joined.
11. Ascent was sold as fixed-price, fixed-scope, fixed-duration packaged offerings. TA Digital's offering documentation records five standard packages, with implementation durations from fourteen to twenty-six weeks, implementation costs from \$402,300 to \$1,168,200, and delivery teams of between twenty-one and forty-two subject-matter experts, delivered across thirteen two-week sprints in three phases. That documentation identifies Data Architect as a defined role in the packaged delivery team. A client statement of work records Ascent Setup and Configuration at an estimated \$250,770 across eight weeks; a separate proposal records an Ascent Mid-Market AEM Foundation engagement at \$349,500 across fourteen weeks with twenty-one subject-matter experts. I did not work on either engagement; both preceded my employment. Those documents are not part of the 2023 packet quoted in this declaration, and I identify them as separate company records rather than reproducing them.
12. Because Ascent integrated content, commerce, analytics, customer data, identity, audience, personalization and marketing technologies into one solution, its layers were mutually dependent. A value that was technically valid at one layer could still produce a semantically incorrect result several layers downstream. A Data Architect working on the data and measurement layer could not design, change or diagnose that layer without understanding the application and integration layers feeding it and the activation layers consuming it.

04 My Role in TA Digital Ascent

SUPPORTING RECORD NP-05 · PRIOR TA DIGITAL COMPANY STATEMENT — SIX DOCUMENTED AREAS OF SPECIALIZATION

“Areas of Specialization in TA Digital Ascent: During his time working for TA Digital India, the Beneficiary has developed an exceptionally high level of expertise in TA Digital Ascent both as a product and a tool. This experience does not exist outside TA Digital, since the program is proprietary.

Furthermore, as a high-level technical specialist working directly on TA Digital Ascent’s development, his particular experience is highly uncommon even within the organization. In particular, the Beneficiary is an expert in the following elements of the program: • Overall project architecture; • Data processing; • Solution design; • System integration documentation; • Project technology strategy; and • Solution/risk barriers.”

What this record establishes. The six areas of Ascent specialization the company attributed to me by name in 2023, and its own characterisation of that expertise as proprietary to TA Digital and uncommon within it.

Source. Same file, PDF p. 40 (letter of support, “Areas of Specialization in TA Digital Ascent”).

13. I confirm those six areas and explain what they consisted of in practice. Overall project architecture meant reasoning across the whole Ascent chain — collection, integration, profile, activation and measurement — rather than within one Adobe product. Data processing meant ingestion, transformation, mapping and validation between commerce, behavioural and offline sources and the customer data platform and data lake. Solution design meant deciding how a client requirement would be met within the reusable core without destabilising it. System integration documentation meant recording how the constituent technologies were wired together and why. Project technology strategy meant advising on sequencing, feasibility and the technical direction of engagements. Solution/risk barriers meant identifying, before build, where an integration would cascade and where validation effort had to be concentrated.
14. My deepest specialization lay in the data, analytics, customer data platform, audience, personalization and marketing-integration layers of Ascent; my responsibilities nonetheless required me to work across the broader integrated architecture, for the reason given at paragraph 12.

SUPPORTING RECORD NP-06 · PRIOR TA DIGITAL COMPANY STATEMENT — FOREIGN ROLE AND RESPONSIBILITIES

“The Beneficiary has been employed with the TA Digital India, since March 22, 2022, in the specialized knowledge role of Data Architect. In this specialized knowledge capacity, the Beneficiary utilizes their expertise and advanced, in-depth knowledge of TA Digital’s proprietary tools and systems TA Digital Ascent to carry out the following responsibilities: • Serve as a technical expert on TA Digital Ascent across teams, clients, and vendors; ... Liaise between business units, technology, and support teams and collaborate with developers, external vendors, and subject matter experts to establish a technical vision for TA Digital Ascent; ... • Maintain codebases, rebuilds, and customization by ensuring the TA Digital Ascent is up to date with all new features expected in the market; ... • Manage system design, application architecture, data designs, content lifecycle definitions, and setting up and deploying production environments; • Architect software design and create system components’ logical and physical design ...; • Support and develop processes and documentation for tagging, testing, Quality Assurance (“QA”), and reporting ... Integrate other systems and build out the Marketing Data Stack; • Streamline the data flow for the customer data platform to create a single view for the customer ...; • Centralize and standardize customer data from multiple sources ...; • Manage profiles with trusted governance and privacy controls for known and unknown identifiers; ... • Lead data integration efforts to support business practices with Data Management Platforms and Customer Data Platforms.”

What this record establishes. The architecture, data-processing, integration, tagging, profile, governance and technical-vision responsibilities the company assigned to me in India, and the 22 March 2022 start date — the same responsibility set described in Parts 4, 6 and 7 of this declaration.

Source. Same file, PDF pp. 41–42 (letter of support, “Nature of the Beneficiary’s Specialized Knowledge with the Foreign Entity”).

15. Two further points of record. A company technical document concerning my Ascent work was created during my employment in India and records these areas of responsibility; in a comment thread within it, a Director of Technology addressed me directly and identified my focus as customer data platform, analytics and personalization, and I responded in the same thread. A company practice structure document records my position as Data Architect with a footnote indicating the designation was then

being re-levelled to Technical Architect, and I was named as Technical Architect on the proposed account team of at least one client-facing proposal. Those documents are separate company records and are identified in the Exhibit Schedule rather than reproduced here.

16. Ascent sat organizationally within a product and innovation grouping while my reporting line sat within the Data practice. I state this expressly because the organizational chart and the nature of my Ascent work are reconcilable but not identical.

05 How My Specialized Ascent Knowledge Was Acquired

17. There was no single formal Ascent training course and no single instructor. The knowledge was acquired through sustained hands-on work and collaboration with the engineers, architects and specialists who worked on the platform. The stages below describe a continuous development and were not separated by formal boundaries. The dates are an approximate reconstructed progression, not formal milestones.

STAGE ONE · APPROX. MARCH-APRIL 2022

Architecture immersion: the three components; the overall architecture; how content, commerce, data, analytics and marketing technologies were connected; existing configurations, documentation and codebases; data flows and integration patterns; the reusable component model. At the outset I could not independently reason across the full architecture, did not understand the rationale behind the proprietary integration patterns, and could not confidently evaluate downstream impact.

STAGE TWO · APPROX. MAY-AUGUST 2022

Hands-on specialization: data processing; tagging; analytics; customer data platform work; profiles; audiences; integrations; online and offline data; personalization; integration documentation; testing; debugging; ingestion diagnostics; source-to-CDP validation; data-layer and event validation; solution design; client customization.

STAGE THREE · APPROX. SEPTEMBER-DECEMBER 2022

Cross-functional responsibility: system architecture; technical strategy; solution

STAGE FOUR · 2023 TO TRANSFER IN 2024

Subject-matter depth and knowledge transfer: greater architectural ownership;

and risk analysis; maintenance and customization; code-quality standards; code review; unit testing; review of other engineers' work; deployment decisions; technical advisory. By the end of this period I could diagnose faults that crossed system boundaries and give architecture guidance grounded in Ascent-specific knowledge.

cross-system diagnosis; code and release review; solution design; knowledge sharing, training and enablement; client-specific customization; pre-sales feasibility, scoping and estimation.

18. I worked with Ascent in India from 22 March 2022 until my transfer — approximately twenty-seven months of continuous full-time experience. I do not claim that each individual capability required twenty-seven months to acquire; I state that the advanced, cross-component knowledge described here was the cumulative product of that period.
19. I was admitted to the United States on 20 June 2024. My United States assignment took effect on 24 June 2024 according to the assignment letter issued to me. These are two distinct events and I state them separately.

06 My Work Across the Three Ascent Components

20. The three components are those identified in NP-03. I worked across all three; the depth differed by component, and I set the differences out rather than claiming uniform involvement.
21. **eCommerce AEM web application.** I was not the primary front-end AEM component developer and do not claim to have been. My work sat at the intersection of the AEM application and the wider Ascent data and marketing architecture: integration with Adobe Analytics, Adobe Launch and Data Collection and Adobe Target; data-layer architecture and validation; event and data-element design and validation; behavioural tracking; tagging standards; content and personalization variation validation; third-party integrations; client customization; testing and technical validation; and identification of the downstream impact of application changes on analytics,

customer data platform, audience and personalization capabilities. That last responsibility was the specialized one: application changes were regularly proposed without visibility of their consequences several layers below.

22. **eCommerce Connector.** Movement, transformation, validation and integration of data between commerce and customer interactions and the wider ecosystem: online behavioural data with offline transactional data; source-to-destination mapping; validation of ingestion into customer data platform and data-lake environments; data standardization; customer-profile integration; known and unknown identifiers; audience enablement; real-time and third-party integrations; integration architecture; debugging of data-flow issues.
23. **Digital marketing connector.** Closest to my deepest specialization: Adobe Analytics; Adobe Experience Platform and Real-Time CDP; Customer Journey Analytics; Adobe Audience Manager; Adobe Target; Adobe Campaign; Adobe Journey Optimizer; Adobe Launch and Data Collection; and Marketo — together with tagging and behavioural collection, audience creation and activation, customer-profile architecture, personalization, campaign and paid-media measurement, KPI and reporting architecture, and Marketing Data Stack integration. The company's own description of my responsibilities at NP-06 records the same scope.

07 My Contributions Across Five Core Ascent Capabilities

SUPPORTING RECORD NP-07 · PRIOR TA DIGITAL COMPANY STATEMENT — FIVE CORE FEATURE CONTRIBUTIONS

“Contributions to Development of TA Digital Ascent: Furthermore, the Beneficiary has not only used TA Digital Ascent but also personally made critical contributions to the development of core features, including playing a key development role in the following features: • Audience ...; • Acquisition ...; • Behavior ...; • Conversions ...; and • Paid Marketing Activities These represent a major cross-section of the core features of TA Digital Ascent and give the Beneficiary wide expertise across the program’s various functions.”

What this record establishes. That the company documented, in 2023, personal development contributions by me to five named core Ascent features — not merely use of the platform. The paragraphs below are my present explanation of the technical substance of each contribution; the historical record establishes the contribution, and my declaration explains its nature.

Source. Same file, PDF p. 40 (letter of support, “Contributions to Development of TA Digital Ascent”).

24. I do not claim to have built the whole of Ascent. I describe below what I contributed to each of the five, in descending order of depth.
25. **Audience.** I designed and supported audience-related data flows: integrating online behavioural with offline transactional information; centralizing and standardizing customer data from multiple sources; supporting a unified customer view across devices and touchpoints; working with known and unknown identifiers; reviewing the merge policies governing how data was prioritized when constructing a unified profile; supporting segmentation and audience qualification; supporting activation into personalization and marketing capabilities; applying governance and privacy controls; and validating that the resulting profiles and audiences represented the intended source information. Creating an audience in a product interface is not the difficult part. The difficulty was knowing that one change could simultaneously affect source mappings, identity resolution, profile precedence, audience qualification, personalization delivery, reporting, campaign activation and the platform’s governance posture.

26. **Behavior.** I created, managed and enforced analytics tagging standards; developed and customized tracking solutions; worked with the page and application data layer; validated events, data elements and the values passed into analytics variables; supported Adobe Analytics and Customer Journey Analytics; worked with behavioural ingestion; developed reporting and KPI capabilities; supported multi-tenant analytics; and connected behavioural data to audience and personalization. Behavioural measurement crossed layers in sequence — application and content, data layer, events and data elements, collection and tagging, analytics and CDP, profile and audience, personalization and reporting. A value could be valid at one layer and semantically wrong downstream; the specialized element was knowing the whole chain well enough to locate where a fault originated and what it would affect.
27. **Paid Marketing Activities.** I supported paid-marketing and return-on-investment measurement; worked with campaign and channel data and with campaign and acquisition tagging; integrated marketing and behavioural data; supported audience activation and re-engagement; connected online and offline data; integrated data into the Marketing Data Stack; and supported campaign performance analysis and keyword and search optimization within the Ascent responsibility set. Consistency across those systems required knowledge of the integrated architecture rather than of any single advertising or analytics product.
28. **Conversions.** My contribution came from the data, measurement and personalization side: how conversion behaviour was captured; validation of conversion-related data; connecting conversion outcomes with audience and customer information; KPI measurement; and enabling the data required to understand which offers and experiences drove outcomes. I do not claim to have been the primary commerce checkout developer.
29. **Acquisition.** My contribution came from the data, tracking, analytics and integration side: how visitors arrived; capture of acquisition and source information; integration of that information into the analytics architecture; and ensuring it could be used in behavioural, conversion, audience and paid-marketing analysis. For both Conversions and Acquisition

the relevant knowledge was not the measurement technique, which is common to the industry, but how that data moved through Ascent's integrated architecture and what depended on it downstream.

08 Code Quality, Technical Review and Deployment Authority

This is the part of my role where the historical company record is most explicit. I set the records out first and then explain how the quality gates actually operated.

SUPPORTING RECORD NP-08 · PRIOR TA DIGITAL COMPANY STATEMENT — REVIEW AND DEPLOYMENT AUTHORITY

“Other Key Responsibilities with TA Digital Ascent: As a high-level technical specialist within TA Digital India, the Beneficiary has led the maintenance of code quality standards for TA Digital Ascent, which includes both performing code reviews and unit testing. This responsibility means he has the authority to review the work of other engineers working on TA Digital Ascent and approve or deny it for deployment.”

What this record establishes. That the company documented both the code-quality leadership and the approve-or-deny deployment authority described in this Part.

Source. Same file, PDF p. 40 (letter of support, “Other Key Responsibilities with TA Digital Ascent”).

SUPPORTING RECORD NP-09 · PRIOR TA DIGITAL COMPANY STATEMENT — THE SAME RESPONSIBILITY IN THE FOREIGN-ROLE LIST

“• Lead the maintenance of code quality standards through code reviews and unit test coverage on TA Digital Ascent. This entails reviewing and approving/rejecting the work of other TA Digital engineers; (utilizing TA Digital Ascent)”

What this record establishes. That the authority was recorded as a standing duty of my foreign position, not as a one-off characterisation.

Source. Same file, PDF p. 41 (letter of support, foreign-role responsibilities).

SUPPORTING RECORD NP-10 · PRIOR TA DIGITAL COMPANY STATEMENT — THE FIVE REVIEW PROCEDURES

“o Run data ingestion error diagnostics to identify any incorrect mapping of fields from Source to Destination ; o Perform sanity tests of source data and the data lake Customer Data Platform (“CDP”) data to ensure the code changes are working correctly without any bugs ; o Review Merge Policies to decide how data is prioritized to create unified customer profile ; o Validate the content code in different variations needed to target the audience effectively ; and o Validate the events/data elements/data layer on the page to identify the values parsed in analytics variables, and overall health check of the elements and values ingested, all adhering to the data governance guidelines.”

What this record establishes. The five specific technical procedures through which my reviews were conducted, in the company’s own words. My explanation of each follows below.

Source. Same file, PDF p. 42 (letter of support, continuation of the code-quality responsibility).

30. Code quality management accounted for approximately fifteen per cent of my role, alongside client consulting services at approximately sixty-five per cent and internal system development at approximately twenty per cent, each utilizing Ascent. Those proportions are the company’s own, taken from its duty breakdown for the Data Architect role: the client-consulting share is reproduced at NP-13, and the headings “CODE QUALITY MANAGEMENT: (utilizing TA Digital Ascent) (15%)” and “INTERNAL SYSTEM DEVELOPMENT: (utilizing TA Digital Ascent) (20%)” appear in the same breakdown at PDF p. 38 of the source file.
31. These procedures were recurring quality gates within Ascent development, maintenance, customization and release activity, not isolated exercises. In technical terms they operated as follows. **Ingestion diagnostics:** I diagnosed incorrect mappings between source and destination and investigated why expected source values were not appearing correctly downstream — which required knowledge of Ascent’s own source mappings and integration patterns, not only of the destination platform’s behaviour. **Source-to-CDP and data-lake sanity testing:** I compared source information against the resulting CDP and data-lake data to determine whether code or configuration changes functioned correctly, which required

knowing what the correct downstream representation should be for that particular Ascent implementation. **Merge-policy review:** I reviewed how data was prioritized when constructing unified profiles and evaluated whether the resulting precedence produced the intended representation of the customer. **Target and content-variation validation:** I validated content code and configuration across the variations required to target audiences correctly. **Events, data-elements and data-layer validation:** I inspected events, data elements and page data-layer values, confirmed they populated analytics variables correctly, and conducted health checks of ingested elements and values against applicable governance standards.

32. The operative rule was that work could not be approved for deployment where a critical quality gate failed. If a source-to-destination mapping produced incorrect CDP or data-lake values, the work required correction and revalidation before I could approve it. The rule was strict because defective data does not remain where it originates: an incorrect mapping produces a contaminated profile, which produces incorrect audience qualification, which delivers the wrong personalization, which distorts reporting, and which may create governance exposure. The cost of admitting bad data rises at every subsequent layer.
33. Records of individual reviews are no longer retained and I do not have a reliable count of the reviews I performed. I therefore offer none, and I do not identify any specific historical instance in which I rejected a particular piece of work. I describe the procedures and the operative rule, both of which I applied as a matter of course and both of which the company recorded contemporaneously with my role.

09 Representative Technical Problems Requiring Ascent-Specific Knowledge

34. The three problem classes below correspond directly to the review procedures recorded at NP-10. I describe them as classes of problem rather than as specific dated incidents, because contemporaneous records identifying particular occurrences are no longer retained and I will not reconstruct details I cannot substantiate.

35. **Source-to-destination ingestion mismatch.** Data existed correctly at source but appeared missing, incomplete or incorrect downstream. I traced the ingestion path, mappings, transformations and destination fields and compared source values against the values resulting in the CDP and data lake. Resolution required correcting the mapping, configuration or code, rerunning the flow, and performing source-to-destination sanity validation with regression testing. This could not be evaluated at the level of the Adobe product alone.
36. **Unified-profile and merge-policy inconsistency.** Multiple customer-data inputs produced an incorrect or inconsistent unified representation of a customer. Diagnosis required reviewing the inputs, the identifiers in use and the precedence and merge-policy behaviour applied; resolution required correcting the prioritization or merge configuration and revalidating both the profile and the audience outcomes depending on it. The correct decision depended on knowing how Ascent expected customer information from its different integrated sources to resolve.
37. **Behavioural tracking and personalization inconsistency.** Analytics or personalization results did not match the intended application or customer behaviour. Diagnosis ran from the application and page, to the data layer, to events and data elements, to analytics variables, and onward to audience and Target behaviour; resolution required correcting the relevant data-layer, tagging, event, data-element or content-variation configuration and retesting the entire chain. This required knowledge of the full Ascent integration path rather than of Adobe Analytics, Launch, Target or AEM considered independently.

10 Knowledge Sharing, Training and Internal Initiatives

SUPPORTING RECORD NP-11 · PRIOR TA DIGITAL COMPANY STATEMENT — SELECTION TO UPSKILL AND TRAIN

“Notably, there are many different sub-technologies involved with TA Digital Ascent. Since the Beneficiary has expertise across all key elements of TA Digital Ascent, they have been selected as an ideal candidate to upskill U.S. employees in the proprietary technology. To this end, the Beneficiary will conduct Knowledge Sharing Sessions centered around TA Digital Ascent for existing employees, and they will also be involved in training new U.S. employees in the skills associated with TA Digital Ascent.”

What this record establishes. That knowledge transfer was a documented function of my role, and that the company attributed to me expertise across all key elements of the platform.

Source. Same file, PDF p. 41 (letter of support, “Planned U.S. Work with TA Digital Ascent”).

38. The subject matter I transferred included the Ascent architecture and how its three components interact; the proprietary integration patterns and the reasons for them; data-layer, tagging and event standards; source-to-destination mapping conventions; identity handling and merge-policy behaviour; customer-profile and audience architecture; personalization and activation configuration; measurement and reporting architecture; the validation procedures applied before deployment; and which elements could safely be customized for a client and which could not.
39. Records of individual sessions, attendee lists and session counts are no longer retained. I do not offer figures for any of them. That absence does not qualify the company record above; it means only that I decline to quantify what I cannot evidence.
40. Separately, a company Data Practice record produced in June 2023 identifies me by name as the lead of an internal initiative titled “Recipes/Prescriptions for analytics dashboards & Calculated Metrics,” whose objective was to standardize calculated metrics and report collections. The same record identifies other named individuals as leads of separate initiatives — a data-layer definition initiative, a process standardization initiative, a connector initiative, a build-scripts initiative and a cookieless implementation initiative — which I did not lead; identifies me as a recipient of a Spot

Award for that period; and records the Data practice as comprising forty-one people. That record is not part of the 2023 packet quoted here and is identified in the Exhibit Schedule.

11 Why My Knowledge Was Advanced and Not Quickly Transferable

I do not rest this Part on self-assessment. It rests on what the company entrusted me to do, and on the company's own comparison of my mastery with that of other employees.

SUPPORTING RECORD NP-12 · PRIOR TA DIGITAL COMPANY STATEMENT — EXPERT STATUS, TECHNICAL VISION AND PEER COMPARISON

“Additionally, the Beneficiary serves as both an internal and external technical expert on TA Digital Ascent, advising internal teams as well as external clients/vendors on the proper use of the proprietary technology. In this capacity, the Beneficiary is also responsible for understanding the needs of various internal and external stakeholders in order to take a leadership role in defining the overall technical vision for TA Digital Ascent. As the Beneficiary has the authority to review the work of other employees working on TA Digital Ascent and is responsible for serving as an internal expert advisor on the technology, it is clear that the Beneficiary's mastery of the technology is highly advanced in comparison to other employees within the organization.”

What this record establishes. A prior company comparison — not a present self-assessment — connecting my review authority and expert-advisor role to a conclusion about the level of my mastery, together with responsibility for the platform's technical vision.

Source. Same file, PDF p. 40 (letter of support, “Other Key Responsibilities with TA Digital Ascent”).

41. I do not claim that I was the only person who possessed knowledge of Ascent, or that no other engineer could ever acquire it. I state that the knowledge was not commonly held — as the company itself put it at NP-05, “highly uncommon even within the organization” — and that transferring it would have required substantial time and cost, for six reasons.

42. **Cross-component breadth.** My knowledge extended across all three components rather than a single product or implementation stream. The capability was reasoning across the whole chain — collection, integration, profile, activation, measurement — and locating the true origin of a fault. That is not the arithmetic sum of five product competencies.
43. **Company-specific integration knowledge.** What I knew concerned how TA Digital had connected, configured and customized the constituent technologies. The company's own statement is that this experience "does not exist outside TA Digital, since the program is proprietary."
44. **Architectural dependency knowledge.** I understood how a change propagated through data, profile, audience, analytics, personalization and activation. Knowing which dependencies had to be protected is knowledge acquired by having made such changes and observed the consequences.
45. **Troubleshooting knowledge.** I understood the failure modes particular to Ascent, as distinct from the documented behaviour of individual products. Much of this was experiential and recorded in no manual.
46. **Review authority.** I was trusted to evaluate other engineers' work and determine deployment readiness against five defined procedures (NP-08, NP-09, NP-10). That authority reflected a level of knowledge the organization considered sufficient to protect the integrity of the platform.
47. **Accumulated experiential knowledge.** The knowledge was the cumulative product of approximately twenty-seven months of progressive full-time work across repeated implementation and customization for differing client requirements. Product training teaches how Adobe technologies work; it does not teach how one company architected, integrated, customized and operated them together as a proprietary platform. I do not offer an estimate of the time or cost required to replace my knowledge, having no reliable basis on which to calculate one.

12 Client Consulting, Customization and Commercial Application

SUPPORTING RECORD NP-13 · PRIOR TA DIGITAL COMPANY STATEMENT — CLIENT CONSULTING SERVICES (65%), KNOWLEDGE TRANSFER AND SOLUTIONING

“CLIENT CONSULTING SERVICES: (Utilizing TA Digital Ascent) (65%) • Conduct Knowledge Sharing Sessions for team members and train the new hires on the entire stack of tools and technologies needed for TA Digital Ascent; • Provide senior-level input to the team members for what other skills and resources would be needed to deliver the solution; • Create and maintain solutions end-user documentation and operational procedures for TA Digital Ascent Go-To-Market strategies; • Refine, test, and debug TA Digital’s client solutions to tailor them to unique contexts; • Transform qualitative and quantitative data into actionable recommendations and Key Performance Indicators (“KPIs”) ...”

What this record establishes. That client consulting using Ascent was the largest share of the role, and what its knowledge-transfer and solutioning content consisted of.

Source. Same file, PDF p. 39 (letter of support, duty breakdown).

SUPPORTING RECORD NP-14 · PRIOR TA DIGITAL COMPANY STATEMENT — DATA AND AUDIENCE INTEGRATION, EXPERT ADVISORY, PRESALES AND SOW

“• Coordinate data integration projects generated audiences’ capabilities that connect online behavioral data with offline transaction data to build context-based audiences for effective targeting; • Prepare timelines for project delivery plans ...; • Connect with clients having similar requirements for their e-commerce websites and able to deliver a customized solution built on top of this tool as per their needs; • Act as both an internal and external expert, providing solutions to issues with implementation ...; • Provide technical consultation and solutions on Adobe Experience Cloud components like Audience Manager, Customer Journey Analytics, Launch, Target, Campaign, AEP, Adobe Journey Optimizer (AJO), and other technologies linked to TA Digital Ascent; • Participate in design meetings ...; • Lead pre-sales support activities like requirements, feasibility, scoping study, implementation effort estimation, and preparation of the statement of work.”

What this record establishes. The specific client-facing content of the role: data and audience integration, client customization, internal and external expert advisory, Adobe Experience Cloud consultation, and pre-sales scoping, effort estimation and statement-of-work preparation.

Source. Same file, PDF p. 39 (letter of support, duty breakdown, continued).

48. In practice that work meant analysis of client requirements; assessment of technical feasibility; development of solution alternatives; client-specific customization; solution and integration architecture; preparation and support of demonstrations; technical support to sales; scope and implementation effort estimation; contribution to statement-of-work technical content; and direct technical consultation with client stakeholders.
49. Effort estimation carried particular weight because the offerings were sold fixed-price, fixed-scope and fixed-duration. Estimating such an implementation accurately requires knowing what the integrated build actually involves — which components are affected, which integrations carry risk, where customization is straightforward and where it cascades, and how much validation each layer requires. An estimate produced without that knowledge is absorbed by the firm rather than by the client.
50. This extended to engagements beyond those I personally delivered, because technical scoping is separable from delivery allocation. I was allocated to delivery engagements individually while contributing scoping and estimation input more broadly.

13 Continued Application of Ascent-Acquired Knowledge

SUPPORTING RECORD NP-15 · PRIOR COMPANY FILING STATEMENT — CONTINUITY OF THE ASCENT ROLE IN THE UNITED STATES

“In this role, the Beneficiary will work on and with TA Digital Ascent, utilizing the expertise in the system that he developed abroad. The Beneficiary will enhance the system and customize it to better meet clients’ business requirements.”

What this record establishes. That the U.S. role was defined, on the form itself, as a continuation of the Ascent expertise developed abroad. It speaks to the role as proposed in 2023; it does not prove any fact after its date, and I do not offer it for that purpose.

Source. Same file, PDF p. 36 (Form I-129S, page 8 of 8, Part 10, Additional Information).

51. The company-specific knowledge I developed through Ascent continues to inform how I perform architecture, integration, data, customer data platform, audience, personalization, quality-review, solution-design and technical-advisory responsibilities within the U.S. organization. The capabilities map as follows.

ASCENT-ACQUIRED CAPABILITY	CONTINUING TECHNICAL APPLICATION
Data-layer, event and tagging architecture	Enterprise data-collection design and governance
Source-to-destination mapping and ingestion validation	Integration architecture and data quality assurance
Customer data platform and profile architecture	Customer-data and identity design
Audience architecture	Segmentation and activation design
Personalization and activation configuration	Experience and personalization architecture
Measurement, KPI and reporting architecture	Measurement architecture and reporting design
Cross-system troubleshooting	Integration diagnosis across connected systems
Code review and release validation	Technical quality assurance and delivery assurance
Solution design and technical feasibility	Architecture and technical consulting
Knowledge transfer	Technical enablement and guidance

52. I state this as a continuity of capability rather than a claim that every current responsibility is literally Ascent work.

14 Summary of Facts Attested

- I entered TA Digital with substantial prior Adobe, analytics, tagging and data-integration experience, and nonetheless had to acquire company-specific knowledge of Ascent after joining (NP-02, NP-05).
- I was employed by TA Digital India as a Data Architect from 22 March 2022, and that knowledge developed progressively over approximately twenty-seven months of hands-on work rather than through any formal

course (NP-01, NP-06).

- The company documented six areas of Ascent specialization attributable to me, and characterised that expertise as proprietary to TA Digital and uncommon within it (NP-05).
- The company documented personal development contributions by me to five named core Ascent features (NP-07).
- The company documented that I led Ascent code-quality standards through code review and unit testing, with authority to approve or deny other engineers' work for deployment, exercised through five named technical procedures (NP-08, NP-09, NP-10).
- The company documented my status as an internal and external technical expert, my leadership role in the platform's technical vision, and its own comparison of my mastery with that of other employees (NP-12).
- The company documented knowledge-sharing and training responsibilities, and client consulting at approximately sixty-five per cent of the role, including customization, technical advisory, pre-sales scoping, effort estimation and statement-of-work preparation (NP-11, NP-13, NP-14).
- I worked across all three principal Ascent components with differing depth in each, which I have specified, and I continue to apply the same company-specific technical capabilities in my present position.
- Where records are no longer retained — individual reviews, training sessions, dated incidents — I have offered no figures and reconstructed no details.

15 Attestation

I declare under penalty of perjury that the foregoing is true and correct.

Executed on [CONFIRM — date] at [CONFIRM — city, state].

Navdeep Pandey

[CONFIRM — title as counsel wishes it stated]

Exact wording of this attestation to be approved by counsel prior to signature. Section 1746 permits an unsworn declaration executed within the United States to be subscribed as true under penalty of perjury and dated, without notarization.

16 Exhibit Schedule

Exhibits NP-01 to NP-15 are the passages reproduced in the panels above. All are drawn from one compiled source file, *Pandey, Navdeep (TA) L-1B BKT Initial (10-2023)-1.pdf*; page numbers are the actual PDF page numbers of that file. Records listed below the table are identified but not reproduced, because they are not contained in that file.

EXHIBIT	PDF P.	EVIDENCE TYPE	PROPOSITION SUPPORTED	PART
NP-01	32	Prior company filing statement (Form I-129S)	Foreign employer, Data Architect title, 22 March 2022 start, specialized-knowledge classification	1, 5
NP-02	42	Prior TA Digital company statement	Prior Adobe and Visa employment and dates	2
NP-03	39–40	Company product description	Ascent proprietary; integrated Adobe technologies; competitive significance; three components	3, 6
NP-04	37	Prior TA Digital company statement	Operational role of company-specific specialized knowledge in the delivery model	3
NP-05	40	Prior TA Digital company statement	Six areas of Ascent specialization; expertise proprietary and uncommon within the organization	4, 11
NP-06	41–42	Prior TA Digital company statement	Foreign role responsibilities: architecture, data processing, integration, tagging, profile, governance, technical vision	4, 6
NP-07	40	Prior TA Digital company statement	Personal critical contributions to five named core features	7
NP-08	40	Prior TA Digital company statement	Led code-quality standards; code review and unit testing; approve-or-deny deployment authority	8, 11
NP-09	41	Prior TA Digital company statement	The same review and approval authority recorded as a standing duty of the foreign role	8

The five technical review procedures: ingestion

NP-10	42	Prior TA Digital company statement	diagnostics, source-to-CDP sanity tests, merge-policy review, content-variation validation, event/data-layer validation	8, 9
NP-11	41	Prior TA Digital company statement	Selection to upskill employees; Knowledge Sharing Sessions; training new employees	10
NP-12	40	Prior TA Digital company statement	Internal and external technical expert; technical vision leadership; comparison with other employees	11
NP-13	39	Prior TA Digital company statement	Client consulting at 65% of the role; knowledge sharing, training, documentation, solution refinement	8, 12
NP-14	39	Prior TA Digital company statement	Data and audience integration; client customization; expert advisory; presales, scoping, estimation, SOW	12
NP-15	36	Prior company filing statement (Form I-129S)	U.S. role defined as continued work on and with Ascent, enhancing and customizing the system	13

Identified but not reproduced here

Employment verification letter from TechAspect Solutions Private Ltd. and fourteen months of foreign pay statements (the compiled copy of the packet carries insert markers at PDF pp. 45–46 in their place); assignment letter and travel and admission record (Part 5); TA Digital Ascent technical documentation bearing my name, including the internal comment thread (Parts 4, 8); practice structure documentation and the client proposal naming me as Technical Architect (Part 4); TA Digital Ascent Offering, client statement of work and Ascent Mid-Market proposal (Parts 3, 12); Data Practice monthly record of June

2023 recording initiative ownership, Spot Award and practice headcount (Part 10); Adobe partner announcements recording Adobe Accredited Partner Solution status (Part 3); credentials evaluation by The Trustforte Corporation (PDF pp. 47–51 of the source file, Part 2).